UNIT 2 · CHAPTER 9 · A HOUSE DIVIDED

The Second Founding

With slavery dead, the nation had to decide what freedom and citizenship would mean — and rewrite the Constitution to say it. 1865–1870.

Name: _____ **Period:** _____ **Date:** _____

With slavery dead, the nation had to decide what freedom and citizenship would mean — and rewrite the Constitution to say it. 1865–1870.

After slavery, what would freedom actually mean?

Four Million Free

1865

The war freed roughly four million people — into a South that was burned, broke, and bitter, with no land to farm, no money, and, at first, no legal standing of any kind.

What would freedom mean? The right to vote? To own land? To go to school, to marry, to move? Who would decide — the freedpeople themselves, the defeated South, or the federal government? This is the real revolution of the era, and it was just beginning.

Three Plans for Peace

THE CLASH BEGINS

There was no agreement on how to rebuild. Lincoln had wanted a quick, lenient reunion. After his death, President Andrew Johnson — a Southerner — went further still, pardoning ex-Confederates and letting the old leaders return to power.

In Congress, the Radical Republicans wanted the opposite: to remake the South and guarantee the rights of the freedpeople. The struggle between a stubborn president and a determined Congress would define Reconstruction.

The Old Order Fights Back

1865–1866

Southern governments under Johnson quickly passed the Black Codes — laws designed to force freedpeople back into something close to slavery: forced labor contracts, arrests for “vagrancy,” and no vote.

The Freedmen's Bureau fought the other way, handing out food, founding schools, and defending freedpeople in court. But it was underfunded and fiercely resisted, and the North could see the South trying to restore the old order by law.

Radical Reconstruction

1867

Furious at the Black Codes, Congress seized control of Reconstruction in 1867. It threw out the Johnson governments, placed the South under military rule, and required each state to write a new constitution and guarantee Black male suffrage before it could rejoin the Union.

The United States Army now stood behind a revolution in the South. For a brief, remarkable moment, the federal government was using its full power to build a biracial democracy.

The South Under Occupation

1867

Congress carved the ex-Confederacy into five military districts, each under an army general.

. Tennessee, already readmitted, was left out. Each district was commanded by a U.S. Army general charged with protecting the vote. · Map © ShadowDog Digital Studios

The five military districts of 1867. Tennessee, already readmitted, was left out. Each district was commanded by a U.S. Army general charged with protecting the vote. · Map © ShadowDog Digital Studios

Citizens at Last

1868

Then came the amendments that remade the Constitution. The Fourteenth Amendment declared that anyone born in the United States is a citizen, entitled to equal protection of the laws.

It was a direct answer to Dred Scott, which had said Black Americans could never be citizens — and it is arguably the most important change to the Constitution since the Bill of Rights, reaching far beyond its own era.

The Vote

1870

The Fifteenth Amendment followed: the right to vote could not be denied on account of race. For the first time, hundreds of thousands of Black men registered and voted, many casting ballots within sight of the fields where they had been enslaved.

But the amendment said nothing about sex — splitting the old alliance with the women's suffrage movement — and it left loopholes that the South would later use to take the vote away again.

From Property to Power

A REVOLUTION IN OFFICE

Men who a decade earlier had been barred even from citizenship now governed. Roughly two thousand Black Americans held office during Reconstruction — on city councils, in statehouses, and in Washington.

Both of the era's Black U.S. Senators represented Mississippi, a state that had just fought a war to keep them enslaved. It was one of the most dramatic reversals in the nation's history.

FREDERICK DOUGLASS

Slavery is not abolished until the Black man has the ballot.

Eight Investigations

YOUR TURN

This is the era the Constitution was rewritten and a biracial democracy first took the field. Step into the people, the laws, and the institutions that built it.